

COMMENTS

Section 123 deals with and defines the various words and expressions used in Chapter XIII.3

Other wise. - The word 'other wise' is not to be construed ejusdem generis with the words "Circulars, advertisements".4

124. Extent of liability. - when in the course of working a railway, an accident occurs, being either a collision between trains of which one is a train carrying passengers or the derailment of or other accident to train or any part of a train carrying passengers, then whether or not there has been any wrongful act, neglect or default on the part of the railway administration such as would entitle a passenger who has been injured or has suffered a loss to maintain an action and recover damages in respect thereof, the railway administration shall, notwithstanding anything contained in any other law, be liable to pay compensation to such extent as may be prescribed and to that extent only for loss occasioned by the death of a passenger dying as a result of such accident, and for personal injury and loss, destruction, damage or deterioration of goods owned by the passenger and accompanying him in his compartment or on the train, sustained as a result of such accident.

Explanation.- For the purpose of this section "passenger" includes a railway servant on duty.

Comments

Section 124 provides for the extent of liability of the railway administration in case of death or injury to a passenger or damage to his goods in an accident.1

Accident – Meaning. – Perusal of the Sec.82-A of the old Act shows that it contemplates liability of railway administration in respect of accidents to train carrying passengers. In particular it shows that the accident contemplated therein is an accident which has occurred due to other collision between trains of which one is a train carrying passengers, or the derailment of or other accidents to a train or any part of a train carrying passengers. The emphasis in Sec.82.A is upon the accident to the train . If there is an accident to the train as contemplated therein, then notwithstanding the fact that there has been no wrongful act, neglect or default on the part of the railway administration, any passenger in such a train who has been injured or who has suffered loss in such accident to the train is entitled to maintain an action and recover compensation from the railway administration concerned, in respect of the injury or loss suffered by him. In the new Railway Act, the provisions in this regard are made in Sec.124 thereof.2

In the instant case, there is clearly an averment in the Claim Petition that when the appellant was about to board the Bangalore – Hyderabad Express train, a heavy iron girder which was loosely and carelessly fixed for electrification work, suddenly fell on the train and thereafter on the applicant resulting in grievous injuries to him. Since the learned counsel for the respondent disputes this averment found in the Claim petition. The Court reserved liberty to the respondent to contest that position at the time of enquiry. However one thing is clear that if this averment is proved satisfactorily then a case is made out for the purpose of maintenance of this application under Sec.82.A of the Act, in as much as if, at the time of the applicant boarding the train, a heavy iron girder which was loosely and carelessly fixed for electrification work, fell suddenly on the train and then on him resulting in the injuries to him, it would amount to an “accident” coming within the purview of Sec.82-A and not a “mishap” to the passenger. It clearly attracts category 3(iii) “other accident to a train”. Thus there is no doubt, that the Tribunal failed to apply its mind in considering the third category viz. “other accident to a train” in view of the decision of the Supreme Court in *Union of India V. Sunil Kumar Ghosh*.³

Whether a railway servant who is on duty is a passenger. – In the case of T.T.E who was on duty at the relevant time, it cannot be said that he was traveling by that train without permission and in view of the matter he cannot be treated as an unauthorized passenger. The controversy whether a railway servant traveling on duty is a passenger for the purpose of the liability of the Railways has been set at rest by the Railway Act, 1989, wherein the explanation to Sec.124 of the Railways Act, 1989, corresponding to old Sec.82.A of the Indian Railways Act, includes a railway servant on duty as passenger. Thus, the petition of claimant for compensation under Sec.82-A was maintainable and claims commissioner committed error in taking contrary view.

124.A. Compensation on account of untoward incidents. – When in the course of working a railway an untoward incident occurs, then whether or not there has been any wrongful act, neglect or default on the part of the railway administration such as would entitle a passenger who has been injured or the dependant of a passenger who has been killed to maintain an action and recover damages in respect thereof, the railway administration shall, notwithstanding anything contained in any other law, be liable to pay compensation to such extent as may be prescribed and to that extent only for loss occasioned by the death of, or injury to, a passenger as a result of such untoward incident.

Provided that no compensation shall be payable under this section by the railway administration if the passenger dies or suffers injury due to –

- (a) suicide or attempted suicide by him:
- (b) self-inflicted injury:

- (c) his own criminal act:
- (d) any act committed by him in a state of intoxication or insanity;
- (e) any natural cause or disease or medical or surgical treatment unless such treatment becomes necessary due to injury caused by the said untoward incident.

Explanation. – For the purposes of this section, “passenger” includes –

- (a) a railway servant on duty : and
- (b) a person who has purchased a valid ticket for traveling , by a train carrying passengers, on any date or a valid platform ticket and becomes a victim of an untoward incident.)

125. Application for compensation. – (1) An application for compensation under section 124 (or Sec.124-A) may be made to the Claims Tribunal –

- (a) by the person who has sustained the injury or suffered any loss. Or
 - (b) by any agent duly authorized by such person in this behalf. Or
 - (c) where such person is minor, by his guardian or
 - (d) where death has resulted from the accident (or the untoward incident) by any dependant of the deceased or where such a dependant is a minor, by his guardian.
- (2) Every application by a dependant for compensation under this section shall be for the benefit of every other dependent.

Comments

Section 125 lays down the persons who can make an application for compensation under sec.124 and the time limit within which such application may be made.

Retrospective effect.- In view of the fact that the rights are to be determined at the time of commencement of the lis, and that Chapter XIII of the Railway Act,1989 has not been made retrospectively applicable, expressly or by implication, therefore, subsequent change in law cannot be taken into consideration for holding the application for compensation filed under Sec.82© of the old act 1890 as maintainable, as the appellants